COLD PAPER WAR

THE PRO SE LITIGATION GUIDE

VOLUME 7 — PUBLIC RECORDS, FOIA & GOVERNMENT TRANSPARENCY

Public Records • FOIA • State Records Laws • Custodians • Exemptions • Appeals • Litigation Evidence • Government Accountability

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> "The government record is often created before the lawsuit begins. Learn how to find it, preserve it, challenge its withholding, and place it into the evidentiary architecture of the case."

LEGAL AND EDITORIAL NOTICE

This volume is an educational research and litigation-planning resource, not legal advice. Federal FOIA and state public-records laws differ substantially. Each request must be evaluated under the statute governing the particular agency or governmental body.

This volume does not assume that every government record is publicly available. Exemptions, privileges, privacy protections, law-enforcement restrictions, security provisions, deliberative-process doctrines, personnel protections, statutory confidentiality provisions, and other limitations may apply.

The objective is lawful access to government records—not harassment of custodians, circumvention of security controls, or unauthorized access to information systems.

CORE PRINCIPLE

Do not ask the government for "everything." Ask for identifiable records that answer identifiable questions.

A strong records strategy converts a broad dispute into a series of precise documentary questions:

What happened?

Who authorized it?

What policy governed it?

What records were created?

Who received them?

What system stored them?

What was retained?

What was withheld?

Under what legal authority?

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1. THE TRANSPARENCY STRATEGY

Public-records work is not simply document collection.

It is investigative architecture.

A government action may leave records in several systems simultaneously.

For example, a single police operation could generate:

- dispatch records;
- CAD entries;
- incident reports;
- body-camera footage;
- supervisor communications;
- photographs;
- property inventories;
- emails;
- text messages where subject to disclosure;
- municipal records;
- contractor records;
- purchase orders;
- invoices;
- training records;
- policies;
- complaints;
- internal reviews.

The first record obtained may therefore lead to ten additional record categories.

This is the **record-expansion principle**:

> One verified record should generate the next set of factual questions.

2. FEDERAL FOIA ARCHITECTURE

The federal Freedom of Information Act applies to qualifying federal-agency records.

It does not generally function as a universal mechanism for obtaining records from:

- state governments;
- municipalities;
- private companies;
- state courts;
- private individuals.

Those records may instead be governed by state law, court rules, discovery rules, subpoenas, or other legal mechanisms.

The researcher must identify the correct legal source before submitting the request.

2.1 Identify the Federal Agency

Do not send a federal request to the wrong department simply because the agency appears connected to the subject.

Identify the agency that actually maintains the records.

Possible distinctions include:

Creator

Who created the record?

Custodian

Who currently maintains it?

Decision-maker

Who acted based upon it?

Those may be three different entities.

3. STATE PUBLIC-RECORDS LAWS

State transparency laws vary significantly.

The applicable statute may govern:

- definitions of public records;
- response deadlines;
- fees;
- exemptions;
- electronic records;
- inspection;
- copying;
- appeals;
- judicial enforcement;
- attorney fees;
- penalties.

Do not assume that a state statute uses the same terminology or standards as federal FOIA.

For Massachusetts matters, for example, the Massachusetts public-records framework must be researched separately from federal FOIA and from New Hampshire's Right-to-Know Law.

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4. IDENTIFYING THE CORRECT CUSTODIAN

Before sending a request, identify the likely record custodian.

Potential custodians include:

- police departments;
- sheriff's offices;
- city or town clerks;
- municipal departments;
- public-records officers;
- state agencies;
- transportation authorities;
- school districts;
- commissions;
- courts;

- procurement offices;
- information-technology departments.

A request sent to the wrong office may create unnecessary delay.

4.1 Follow the Record

If Agency A says:

> “Those records are maintained by Agency B.”

do not simply repeat the original request to Agency A.

Determine:

- what records are actually held by B;
- whether A maintains copies;
- whether A created the record;
- whether B is legally responsible for responding.

This produces a cleaner administrative record.

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5. DESIGNING THE REQUEST

A strong request has identifiable components.

Subject

What matter does the request concern?

Date Range

What period matters?

Record Type

What specific records are sought?

Custodian

Who likely possesses them?

Identifiers

What names, locations, case numbers, incident numbers, addresses, vehicles, systems, or other identifiers can narrow the search?

Format

Is electronic production requested where available?

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6. SEARCH TERMS AND RECORD CATEGORIES

A request can identify reasonable search terms.

Potential identifiers include:

- full names;
- aliases;
- case numbers;
- incident numbers;
- report numbers;
- addresses;
- street names;
- dates;
- vehicle identifiers;
- officer names;
- department names;
- project names;
- vendor names.

Avoid generating hundreds of unrelated search terms.

The goal is a defensible search—not an impossible one.

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7. ELECTRONIC RECORDS AND METADATA

Government records increasingly exist electronically.

Relevant categories can include:

- email;
- electronic calendars;
- databases;
- spreadsheets;
- photographs;
- video;
- cloud documents;
- CAD systems;
- records-management systems;
- access logs;
- audit logs;
- digital correspondence.

7.1 Metadata

When metadata is legally obtainable and relevant, determine whether the requested production can preserve useful information such as:

- creation date;
- modification date;
- author;
- file type;
- source system;
- document history.

Do not assume that every metadata field is necessarily accurate or legally disclosable.

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8. GOVERNMENT DATABASES AND AUDIT TRAILS

Many government actions leave database traces.

Examples include:

- records-management systems;
- police CAD;

- licensing databases;
- property systems;
- permit systems;
- dispatch platforms;
- case-management systems;
- surveillance platforms;
- access-control systems.

A useful request may seek:

1. The underlying record.
2. The relevant policy.
3. The audit history.
4. The access history, where legally available.
5. The retention policy.
6. The system's custodian.
7. The relevant user or department.

The database record can sometimes answer questions that narrative reports cannot.

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9. BODY CAMERAS, CAD AND DISPATCH RECORDS

For incidents involving law enforcement, consider separately requesting:

Body-worn camera footage

Dash-camera footage

CAD records

911 calls

Radio traffic

Dispatch logs

Incident reports

Supervisor reports

Property inventories

Photographs

Related correspondence

The records should be requested with precise date, time, location, and incident identifiers whenever available.

9.1 Preservation Matters

Video can be subject to automatic retention and deletion schedules.

Where litigation is reasonably anticipated, preservation should be addressed promptly through appropriate legal channels.

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10. SURVEILLANCE AND AUTOMATED DATA SYSTEMS

Modern government operations may involve:

- automated license plate recognition;
- fixed cameras;
- body cameras;
- drones;
- facial-recognition systems;
- location databases;
- mobile-device systems;
- private surveillance platforms;
- vehicle telemetry;
- contracted analytics systems.

The transparency question is not merely:

> “Do you have surveillance?”

It may be:

> “What system was used, who operated it, what records did it generate, what policy authorized its use, what vendor supplied it, how long were records retained, and who could access them?”

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11. CONTRACTS AND VENDOR RECORDS

Government functions are increasingly performed through private contractors.

Relevant records may include:

- contracts;
- amendments;
- statements of work;
- invoices;
- purchase orders;
- procurement records;
- performance reports;
- technical specifications;
- policies;
- vendor communications;
- retention provisions;
- data-sharing provisions.

11.1 Follow the Government's Money

Procurement records can reveal:

- which vendor was selected;
- when it was selected;
- what services were purchased;
- what data the vendor processes;
- how long records are retained;
- what government personnel have access;
- what contractual obligations exist.

The contract can sometimes explain the technology more clearly than the agency's public statements.

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12. EXEMPTIONS AND WITHHOLDING

A public-records request does not guarantee disclosure.

When records are withheld, identify:

What was withheld?

Who withheld it?

What exemption was asserted?

Does the exemption actually apply?

Can segregable portions be released?

Was a sufficient explanation provided?

The requester should distinguish between:

No responsive records

and

Responsive records exist but are withheld.

Those are fundamentally different responses.

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13. REDACTIONS AND PARTIAL PRODUCTION

A record containing protected information may not necessarily justify withholding the entire document.

Where applicable, request:

segregable, nonexempt portions.

For example, an agency might lawfully redact:

- personal information;
- protected medical information;
- confidential identifiers;

while still releasing:

- dates;
- policy language;

- organizational information;
- nonprotected factual material.

The requester should evaluate the specific exemption rather than treating every redaction as unlawful.

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14. ADMINISTRATIVE APPEALS

When records are denied, preserve the entire administrative exchange.

Create:

Request

↓

Acknowledgment

↓

Extension

↓

Production or denial

↓

Exemption

↓

Appeal

↓

Agency response

↓

Final administrative position

↓

Judicial enforcement if appropriate

This sequence becomes critical if the dispute later enters court.

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15. JUDICIAL ENFORCEMENT

When administrative efforts fail, determine whether the governing law provides a judicial enforcement mechanism.

Research:

- jurisdiction;
- filing deadline;
- exhaustion requirements;
- burden of proof;
- standard of review;
- available remedies;
- attorney-fee provisions;
- statutory penalties;
- exemptions;
- procedural requirements.

The complaint should identify the records requested and the legal basis for disclosure.

Avoid turning a records-enforcement case into a generalized political complaint.

The court needs a concrete dispute.

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16. RECORDS AS LITIGATION EVIDENCE

A public-records production can become evidence in another lawsuit.

But obtaining a document through a public-records law does not automatically resolve every evidentiary question.

Maintain:

- original production;
- agency correspondence;

- production date;
- file name;
- file format;
- custodian;
- request number;
- response letter;
- exemption correspondence.

Create a chain:

Request → Agency → Production → Preservation → Authentication → Litigation Exhibit.

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17. RECORDS PRESERVATION AND LITIGATION HOLDS

A public-records request and a litigation hold serve different purposes.

A public-records request seeks disclosure.

A litigation hold seeks preservation of potentially relevant evidence.

Where litigation is reasonably anticipated, preservation should address relevant categories of information.

Potential categories include:

- emails;
- text messages where applicable;
- video;
- photographs;
- CAD;
- databases;
- paper files;
- contracts;
- logs;
- electronic communications;
- physical property.

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18. MULTI-AGENCY REQUESTS

Complex government actions frequently involve multiple agencies.

Create a matrix.

Agency	Function	Records Likely Held	Request Date	Response	Follow-Up
Police	Enforcement	CAD/bodycam/reports			
DPW	Property/removal	Work orders/photos			
Clerk	Official records	Notices/minutes			
IT	Digital systems	Logs/access records			
Procurement	Vendors	Contracts/invoices			
Legal	Agency counsel	Nonprivileged records			

This prevents the common mistake of asking one agency to produce records it never possessed.

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19. THE PUBLIC-RECORDS TIMELINE

Build the timeline before litigation if possible.

Example:

January 4 — Incident occurs.

January 5 — Initial preservation request.

January 6 — Public-records request submitted.

January 15 — Agency acknowledges request.

January 20 — Agency identifies extension.

February 3 — Partial production.

February 4 — Withholding identified.

February 7 — Follow-up request.

February 20 — Final denial.

February 25 — Administrative appeal.

March 10 — Appeal denied.

March 15 — Judicial enforcement evaluated.

This timeline may become evidence itself.

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20. THE TRANSPARENCY AUDIT

Before closing a public-records investigation, ask:

Custodian

Did I identify every likely custodian?

Record

Did I identify the actual record rather than merely asking about an event?

Date

Did I establish a reasonable date range?

System

Could another database contain the information?

Vendor

Does a contractor possess relevant information?

Policy

What policy governs the record?

Retention

How long is the record retained?

Exemption

What legal exemption was asserted?

Segregation

Can nonexempt portions be released?

Appeal

Is an administrative appeal available?

Enforcement

Is judicial review available?

Evidence

Have I preserved the complete administrative exchange?

APPENDIX A — MASTER RECORDS REQUEST MATRIX

Request No.	Agency	Record Category	Date Range	Identifier	Submitted	Response	Appeal
001							
002							
003							
004							

APPENDIX B — FOIA / PUBLIC-RECORDS REQUEST ARCHITECTURE

Agency: _____

Custodian: _____

Applicable statute: _____

Subject: _____

Date range: _____

Names/identifiers: _____

Records requested:

1. _____
2. _____
3. _____
4. _____

Requested format: _____

Fee position: _____

Preservation concern: _____

Submission date: _____

APPENDIX C — WITHHOLDING CHALLENGE WORKSHEET

Record: _____

Agency: _____

Request: _____

Date of denial: _____

Exemption asserted: _____

Description of withheld material: _____

Potential segregable material: _____

Administrative appeal deadline: _____

Requested remedy: _____

APPENDIX D — GOVERNMENT DATABASE EVIDENCE WORKSHEET

System: _____

Agency: _____

Vendor: _____

Custodian: _____

Purpose: _____

Relevant date range: _____

Records generated: _____

Audit logs: _____

Retention policy: _____

Access controls: _____

Potential users: _____

Contract: _____

Litigation relevance: _____

APPENDIX E — RECORDS LITIGATION CHECKLIST

□ Identify correct statute.

□ Identify correct custodian.

□ Define record categories.

□ Establish reasonable date range.

□ Identify names and identifiers.

□ Request electronic records where appropriate.

□ Preserve request confirmation.

□ Preserve all responses.

□ Track statutory deadlines.

□ Identify exemptions.

□ Request segregable material where applicable.

□ Determine whether administrative appeal exists.

□ Preserve the appeal record.

□ Research judicial enforcement.

□ Preserve produced records in original form.

□ Create an evidence index.

□ Connect important records to specific litigation issues.

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Government transparency is not simply the act of asking a public agency for documents.

It is the systematic reconstruction of governmental activity through the records that activity leaves behind.

A single event may produce a report.

A report may identify a supervisor.

The supervisor may identify a policy.

The policy may identify a contractor.

The contract may identify a database.

The database may contain an audit trail.

The audit trail may establish who accessed the information.

The resulting chain can transform an allegation into a documentary investigation.

That is the central discipline of the public-records phase of the Cold Paper War:

Follow the record. Follow the authority. Follow the data. Follow the decision.

Do it lawfully.

Do it precisely.

Preserve everything.

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Cold Paper War — The Pro Se Litigation Guide

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